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PureTask — Pre-Adverse Action Notice (Template)

Document 07A — operational template, not part of applicant signup flow

HOW TO USE THIS TEMPLATE

This is a **Pre-Adverse Action Notice** required by the federal **Fair Credit Reporting Act (FCRA)**, 15 U.S.C. § 1681b(b)(3), the **California Investigative Consumer Reporting Agencies Act**, Cal. Civ. Code § 1786.40, and analogous Texas and Florida law.

Send this notice to a Pro applicant **before** taking adverse action (denial, suspension, deactivation) based wholly or in part on a consumer report or investigative consumer report.

Required attachments with this notice: 1. A complete copy of the consumer report obtained; 2. The **CFPB Summary of Your Rights Under the Fair Credit Reporting Act** (the official short-form document); 3. For California applicants, a copy of the **California ICRAA Summary of Rights** under Cal. Civ. Code § 1786.22.

Wait at least 5 business days between sending this notice and taking final adverse action. Longer waits are advisable in California and for complex disputes. The applicant must have a meaningful opportunity to respond, dispute, or provide context.

Delivery: Send by email to the address on file, with a delivery / read receipt enabled where possible. Retain proof of sending in the applicant's file for at least 5 years. If applicant requests paper, mail by first-class with proof of mailing.

California applicants: Be especially mindful of the California Fair Chance Act (Gov. Code § 12952), AB 2188 / SB 700 (cannabis-related), and Cal. Lab. Code § 432.7 (sealed/expunged/dismissed convictions). If the basis for adverse action is a conviction, complete an **Individualized Assessment** before sending this notice.

Letterhead

PureTask LLC [STREET ADDRESS] Sacramento, California [ZIP] Email: otherpuretask@gmail.com

[DATE]

[APPLICANT NAME] [APPLICANT ADDRESS / EMAIL]

Re: Pre-Adverse Action Notice Regarding Your PureTask Pro Application

Dear [APPLICANT NAME]:

Thank you for applying to use the PureTask Platform as a service professional. We are writing to let you know that we are **considering taking adverse action** on your application based, in whole or in part, on information contained in a consumer report or investigative consumer report we received about you.

No final decision has been made. This is a **Pre-Adverse Action Notice** sent under the federal Fair Credit Reporting Act (FCRA), 15 U.S.C. § 1681b(b)(3), and applicable state law. We want to give you an opportunity to review the information and respond before any final decision is made.

The Consumer Reporting Agency

The consumer reporting agency that provided the report is:

[CONSUMER REPORTING AGENCY NAME] [STREET ADDRESS] [CITY, STATE, ZIP] Phone: [PHONE NUMBER] Website: [WEBSITE]

This consumer reporting agency **did not make the decision** to consider adverse action. It only provided the report to PureTask. If you believe any information in the report is inaccurate or incomplete, you have the right to dispute it directly with the consumer reporting agency, and we encourage you to do so.

Attachments

We have attached:

1. **A complete copy** of the consumer report we received about you;
 2. The **Summary of Your Rights Under the Fair Credit Reporting Act**, published by the Consumer Financial Protection Bureau;
 3. **[For California applicants only]** A copy of the **California Summary of Rights Under Cal. Civ. Code § 1786.22**;
 4. **[Optional]** A summary, in plain language, of the specific item or items in the report that we are concerned about.
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Your Rights and Next Steps

You have at least **five (5) business days** from the date of this notice — until **[DEADLINE DATE]** — to:

- **Review** the attached consumer report carefully;
- **Dispute** the accuracy or completeness of any information in the report directly with the consumer reporting agency listed above (you may also notify us);
- **Respond** to us with any context, mitigation, rehabilitation evidence, or explanation you wish us to consider;
- **Request additional time** if the response window is insufficient for you to obtain documentation or counsel — we will consider reasonable extension requests in good faith;
- **Request a free copy** of your file directly from the consumer reporting agency, which you are entitled to receive (in most cases) within a few business days.

To respond to PureTask, please reply to this email at **otherpuretask@gmail.com** with the subject line **“Pre-Adverse Action Response — [Your Name].”**

What Happens Next

After the response period:

- **If you respond**, we will review your response and supporting documentation before making any final decision.
 - **If you do not respond**, or if after reviewing your response we still intend to take adverse action, you will receive a separate **Adverse Action Notice** explaining the final decision and your continuing rights.
 - **If we decide not to take adverse action**, we will let you know and complete the Pro signup process.
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California Applicants — Additional Information

If you are a California resident, you have additional rights under California law:

- We will conduct (or have conducted) an **Individualized Assessment** of any conviction-related information, considering the nature and gravity of the offense, the time elapsed, the nature of the role, and any evidence of rehabilitation you provide;
- We will **not consider**: (a) any non-felony marijuana-possession conviction more than two years old; (b) your off-duty cannabis use; (c)

results of any non-psychoactive cannabis-metabolite test; (d) any conviction that has been sealed, expunged, dismissed, or set aside; (e) any juvenile record; (f) most arrests not leading to conviction;

- These protections come from the **California Fair Chance Act (Gov. Code § 12952), Cal. Lab. Code § 432.7, Cal. Lab. Code § 432.8, AB 2188, and SB 700.**

If you believe we are considering information that we are prohibited from considering, please tell us in your response.

Questions

If you have questions about this notice, you may contact us at **otherpuretask@gmail.com**, subject “**Pre-Adverse Action Question — [Your Name].**”

We appreciate your interest in PureTask and we will not take any final action until you have had an opportunity to respond.

Sincerely,

PureTask LLC

[NAME OF SENDER] [TITLE] **otherpuretask@gmail.com**

Enclosures

- ☐ Copy of consumer report
 - ☐ CFPB Summary of Your Rights Under the FCRA
 - ☐ [California only] Summary of Rights Under Cal. Civ. Code § 1786.22
 - ☐ [Optional] Plain-language summary of items of concern
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Internal Use — Pre-Adverse Action Worksheet

To be completed by PureTask before sending the notice. Retain in applicant file.

Field	Value
Applicant name	
Applicant email	
Applicant address (if mailing)	
Date report received	
Consumer reporting agency	

Field	Value
Type of report (consumer / investigative)	
Items of concern in report	
Individualized assessment performed? (CA req.)	☐ Yes ☐ N/A
Individualized assessment factors considered	
Items excluded from consideration (CA Fair Chance Act, marijuana, sealed, etc.)	
Notice prepared by	
Notice reviewed by	
Date notice sent	
Method of delivery (email / mail)	
Delivery confirmation reference	
Response deadline	
Applicant response received?	☐ Yes ☐ No
Date response received	
Response summary	
Final disposition	☐ Adverse action ☐ No action ☐ Pending
Date of final disposition	

This is a general template. It is not legal advice. The FCRA pre-adverse action workflow is highly regulated; please have a licensed FCRA attorney review this notice and your operational practices before using it in production. Background-check vendors (Checkr, Sterling, GoodHire) typically provide their own pre-adverse action notice templates and automated workflows — use the vendor's form when available and confirm it covers all California-specific protections.